



Law No. 6769 on Industrial Property Comprehensive Information Document

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Executive Summary

Law No. 6769 on Industrial Property constitutes the principal legal framework governing the protection of rights relating to trademarks, geographical indications, designs, patents, utility models, and traditional product names in Türkiye. Adopted on 22 December 2016, the law aims to contribute to technological, economic, and social development. In addition to regulating application, registration, and post-registration procedures for industrial property rights, the law also defines in detail the civil and criminal consequences of infringement. This document synthesizes, in a source-faithful manner, the core categories of industrial property, the conditions for protection, the principles of ownership, and the grounds on which rights may terminate.

Quick Reference: Key Terms of Protection

Right Type	Key Term	Note
Trademark	10 years	Renewable for successive ten-year periods.
Trademark Use Requirement	5 years	A trademark may be revoked if unused without just cause.
Registered Design	5 years	May be extended up to a total of 25 years.
Unregistered Design	3 years	Must first be disclosed to the public in Türkiye.
Patent	20 years	Calculated from the filing date.
Utility Model	10 years	Calculated from the filing date.

1. General Provisions and Definitions

The law establishes a framework by identifying the persons entitled to benefit from industrial property protection and by defining the basic concepts used throughout the statute.

Persons Entitled to Protection

- Citizens of the Republic of Türkiye.
- Natural and legal persons domiciled in, or engaged in commercial activity within, the borders of Türkiye.
- Persons entitled to file applications under the Paris Convention or the Agreement Establishing the World Trade Organization.
- Nationals of states that provide protection to Turkish citizens under the principle of reciprocity.

Key Definitions

Term	Definition
Industrial Property Right	The collective term for trademark, geographical indication, design, patent, and utility model rights.

Office	The Turkish Patent and Trademark Office.
Bulletin	The official publication platform where matters specified by the law are announced.
Paris Convention	The principal international convention concerning the protection of industrial property.

2. Trademark Rights and Scope of Protection

A trademark is any sign capable of distinguishing the goods or services of one undertaking from those of others.

Registration and Grounds for Refusal

Trademark protection is acquired through registration. During the registration process, two categories of refusal grounds apply:

- Absolute Grounds for Refusal (Article 5): Signs lacking distinctive character, indicating the kind or characteristics of goods or services in trade, or contravening religious values or public order cannot be registered.
- Relative Grounds for Refusal (Article 6): Upon opposition, an application may be refused where there is similarity with an earlier or registered trademark, a likelihood of confusion, a bad-faith filing, or inclusion of another person's intellectual property rights (such as name rights or copyright).

Important Time Periods in Trademark Protection

- Term of Protection: 10 years from the filing date, renewable for successive ten-year periods.
- Use Requirement: Trademarks not used within five years from registration, without just cause, may be revoked.

Infringement and Criminal Provisions

Persons who manufacture or sell goods by infringing another person's trademark right may face imprisonment from one to three years as well as a judicial fine. Criminal sanctions also apply to persons who unlawfully remove signs indicating trademark protection or who dispose of trademark rights without authorization.

3. Geographical Indications and Traditional Product Names

Protection in this category covers products whose distinctive quality, reputation, or other characteristics are identified with their geographical origin.

Categories

- Designation of Origin: Products whose production, processing, and all other operations take place within the relevant geographical area.

- **Geographical Indication:** Products whose specific quality, reputation, or characteristic is attributable to the area, provided that at least one of the production, processing, or other operations occurs there.
- **Traditional Product Name:** Names proven to have been used traditionally for at least 30 years.

Protection and Supervision

Registration of a geographical indication does not create an exclusive right vested in a single person; any producer complying with the registered conditions may use it. However, use of the emblem is mandatory. The registrant is responsible for monitoring compliance with the registered product specifications and for submitting annual inspection reports to the Office.

4. Design Rights

A design is the appearance of the whole or a part of a product resulting from features such as lines, contours, shape, color, texture, and materials.

Conditions for Protection

- **Novelty:** The design must not have been made available to the public anywhere in the world before the filing date.
- **Individual Character:** The overall impression created on the informed user must differ from that created by earlier designs.

Terms in Design Protection

- **Registered Design:** Protected for 5 years and renewable up to 25 years.
 - **Unregistered Design:** Protected for 3 years from the date it is first made available to the public in Türkiye.
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5. Patents and Utility Models

Inventions in all fields of technology may be protected if they satisfy the prescribed legal conditions.

Patentability Requirements

- **Novelty:** The invention must not form part of the state of the art.
- **Inventive Step:** Having regard to the state of the art, the invention must not be obvious to a person skilled in the relevant field.
- **Industrial Applicability:** The invention must be capable of being produced or used in any branch of industry.

Exceptions (Non-Patentable Subject Matter)

- Discoveries, scientific theories, and mathematical methods.
- Computer programs and literary or artistic works.

- Processes for cloning human beings and inventions contrary to public order.
- Plant varieties or animal breeds (except for microbiological processes).

Terms of Protection and Licensing

- Patent: 20 years from the filing date.
- Utility Model: 10 years from the filing date.
- Compulsory License: A compulsory license may be granted by a court or competent authority in cases such as public interest, non-use of the invention, or dependency between patent subjects.

6. Employee Inventions and Designs

Special provisions apply to industrial property rights created within the framework of an employment relationship.

- Service Invention / Service Design: Work carried out by an employee in the course of duties owed to the enterprise, or by using the enterprise's experience and means, is considered a "service" invention or design. In such a case, the employer is the right holder.
- Right to Remuneration: The employer may claim full or partial rights over the employee's invention. In that case, the employee has the right to request remuneration determined with regard to the economic importance of the invention.
- Higher Education Institutions: For inventions made by academic staff, at least one-third of the revenue must be allocated to the inventor.

7. Termination of Rights and Invalidity

Industrial property rights may terminate in the following circumstances:

- Expiry of the term of protection without renewal.
- Waiver by the right holder.
- Decision of Invalidity: Where a court determines that the statutory conditions (such as novelty, distinctiveness, or patentability) did not exist at the time of registration, the right is deemed invalid. A decision of invalidity has retroactive effect and is treated as if the right had never arisen.
- Revocation Decision (for Trademarks): The Office may revoke a trademark if it has not been used for five years or if it has become a generic name.

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